



File No.: EXP202301368

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by A.A.A. (hereinafter, the appellant previously claimant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated May 5, 2023, and based on the following

FACTS

FIRST: On May 5, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202301368, in which it was agreed to uphold the claim for the exercise of rights made by the appellant against ATLAS ENTERTAINMENT, S.L. (hereinafter the respondent).

SECOND: The resolution now being appealed was duly notified to the appellant on May 15, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a reconsideration appeal to this Spanish Agency for Data Protection, in which, in summary, he indicates that he still has not received a response from the respondent regarding the requested and unaddressed right. He adds that he wishes to extend this request to his wife, with whom he shares the desire for their data to be deleted.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Regarding the statements made by the appellant, the following should be noted:

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It is true that it has not been demonstrated as of the date of this resolution that the right has been addressed by the respondent. In this regard, on May 24, 2023, after receiving this appeal, a compliance reminder was sent from this Agency to the respondent with the following text:

“...Once the period granted for the required actions in said resolution has elapsed, without this Agency having been informed of them, and having received a letter from the claimant requesting compliance with the resolution, ATLAS ENTERTAINMENT, S.L. is required to:

1.- Within five business days, send the claimant a certification of compliance with the referenced resolution in the terms described therein.

2.- Within ten business days, notify this Agency of the measures adopted in compliance with the requirement made in the previous point...”

Another matter that the appellant should be aware of is that, just as the claim subject to this appeal was individual, the appeal itself must also be individual.

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated. These rights are personal, meaning that the data subject must personally address the entity to which they wish to make the request, unless there is legal or voluntary representation, and in the case of voluntary representation, a power of attorney from the data subject is required “written, individual, and granted in strict terms” (SAN of 05/20/2010, RCA 106/2009).

Therefore, regardless of whether the deletion request affects one or several individuals, these rights

must be addressed individually.

III

Examining the reconsideration appeal submitted by the interested party, there is no contradiction between what has been resolved by this Agency, an estimation due to the lack of response regarding the requested right and what is now stated by the appellant.

We are faced with an unaddressed right, and this Agency will act as established by the regulations once all the procedures preceding the opening of a sanctioning procedure have been fulfilled in case of no response.

Therefore, in light of all the above, this appeal is dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the reconsideration appeal filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on May 5, 2023, in file EXP202301368.

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SECOND: NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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